

April 10, 2026, Civil Law & Motion Tentative Rulings

**1. CU0002094 The Mortgage Law Firm, PLC v. All Claimants to Surplus Proceeds
After the Trustee's Sale of the Real Property at 25970 Table Meadow
Road, Auburn, CA**

Appearances required for hearing on claims to the undistributed surplus funds.

2. CL0003052 JPMorgan Chase Bank, N.A. vs. Amy S. Perdue

Defendant Perdue's January 12, 2026, motion to compel arbitration is granted.

Defendant asserts Plaintiff JP Morgan Chase Bank N.A. is bound by a binding and enforceable agreement to arbitrate its claims by means of the Cardmember Agreement. The Court agrees.

"The party seeking to compel arbitration has the initial burden to plead and prove the existence of a valid arbitration agreement that applies to the dispute. Once that burden is satisfied, the party opposing arbitration must prove any defense to the agreement's enforcement" *Dennison v. Rosland Cap. LLC* (2020) 47 Cal.App.5th 204, 209.

Defendant has shown that a valid arbitration agreement exists that applies to this dispute. Plaintiff previously indicated on February 25, 2026 that it was not opposing arbitration at that time and has filed no opposition to the same.

3. CL22-086219 American Express National Bank vs. Tania Blair

Plaintiff American Express National Bank's February 3, 2026, motion to vacate the conditional dismissal and for entry of judgment pursuant to Code of Civil Procedure section 664.6 is granted with modified costs.

Where the statutory requirements are met, the court, upon motion, may enter judgment pursuant to the terms of the settlement agreement after dismissal, pursuant to Code of Civil Procedure section 664.6. A party moving for entry of judgment pursuant to this provision need not establish a breach of the settlement agreement, as the court is authorized to enter judgment pursuant to the settlement regardless of whether the settlement's obligations were performed or excused. *Hines v. Lukes* (2008) 127 Cal.App.4th 1174, 1184-1185. When the settlement agreement and dismissal reserve for the trial court the authority to determine the prevailing party and to award costs and fees accordingly, the court has jurisdiction to award such costs and fees. *Khavarian Enterprises, Inc. v. Commline, Inc.* (2013) 216 Cal.App.4th 310, 320; 329 (rule applies to § 664.6 motions).

All statutory requirements of Code of Civil Procedure section 664.6 have been satisfied, as the parties entered into a valid and binding settlement agreement, and the court properly retained jurisdiction following dismissal to do so. Further, the stipulated written agreement expressly contemplates that upon Defendant's failure to comply with the terms of the settlement